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Request for Information: Development of an Artificial Intelligence Action Plan

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Submitter Information

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General Comment

Development of an Artificial Intelligence Action Plan

Public Comment on AI:

Topic area: Privacy

The nature of Machine Learning models is that it relies on personal data, and it can be leaked during the merging of datasets to analyze and create learning models to be used in programming.

These transfers are occurring everywhere now – especially as new versions of “chatbots” come on the market, with little to no oversight. It’s fueling a kind of gold rush for datasets – and a sense that “anything goes” amid an arms race around the globe for dominance in AI systems.

The United States technology industry has a history of ignoring data privacy.

Indeed, the free model of usage that Facebook, Google, and other major tech players rely upon reflects this “data must be free” model.

Only in the past few years have data privacy standards been ramping up, such as Europe’s GDPR, and California’s Consumer Privacy Act (CCPA), which strives to give consumers more power over the data about them – which is the fuel for AI and specifically, the “meta-learning” phase that we are moving into as a society.

These “meta-learners” are already turning ML systems in on themselves to learn how to learn more quickly. Companies are scooping up data about how we use software in more invasive ways. At some point, I should be given a prompt asking me how much of this data/creation/asset, or otherwise thing of value can be exploited by the “meta-learner.”

So a whole new thinking about the “EULA” – the End User License Agreement may be in order in the software and application industry.

Trust Agents Must be Empowered -- with Prompts to the End-User

We need to re-think the uses of encryption to ensure data privacy is preserved for consumers during the transit of data to and fro on its way to whatever data lake or ocean a “meta-learner” will be diving into. Amazon is among the major cloud providers (AWS) to deploy so-called “homomorphic encryption”, to protect each hop datasets are taking in order to empower analysis or predictive models based on the type of data being joined, etc.

A kind of “decoy” encryption needs to become industry standard -- with government’s help -- to block the “not so fast” meta learners from some leakage along the way – or even diverting datasets as web services (another form of machine learning) grow more advanced. Machines are talking to each other -- and can get kind of sloppy if they are not programmed for explicit forms of data protection, such as encryption methods that ensure “dumb” systems don’t leak.

Many companies are offering free versions of their “build your own learning system” models. The only way the user can protect their privacy is via paid version, which means personal data is being put to use without the end user's consent. Companies are under no obligation to disclose how they are using the customer's data -- even with paid version of these services that claim privacy is enhanced.

AI governance must balance the benefits of these “services” with privacy standards.

Adding parameters to these learning systems is all the rage among the “discrete” programming models that hold sway in the race to build a faster “meta-learner.” The United States government needs to add some parameters to the software industry and technology providers as well that ensures we are prompted with updates about how our datasets are being used and whether that data is allowed to be ingested into a “learning” model.

Thank you for the opportunity to add some thoughts to the RFI.

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